

2:00 PM LINE 5

23-CIV-04242

ZABALLA SQUARE INVESTMENTS L.P. VS. JOHN SHEPUTIS, ET AL

**ZABALLA SQUARE INVESTMENTS L.P.
JOHN SHEPUTIS**

**ROBERT R CROSS
ADRIAN J. SAWYER**

Plaintiff's Motion to Bifurcate

TENTATIVE RULING:

The Motion was not filed and is **MOOT**.

2:00 PM LINE 6

24-CIV-01210

CHRIS TAGUNICAR VS. SAM BHAS, ET AL

CHRIS TAGUNICAR
SAM BHAS

PRO SE
NOELLE D GONZALEZ

Plaintiff's Motion to Withdraw and/or Amend Deemed Admissions as to Defendant Amisha Patel

TENTATIVE RULING:

Plaintiff Chris Tagunicar's Motion to Withdraw and/or Amend Deemed Admissions as to defendant Amisha Patel is **DENIED**.

On September 12, 2025, Patel served plaintiff with discovery, including Requests for Admissions (RFAs). (Crane Decl., ¶ 4.) Plaintiff's responses were due by no later than October 17, 2025. (*Ibid.*) Plaintiff failed to serve any responses and did not request an extension of time to respond. (*Id.*, ¶ 5.) Patel's counsel sent emails to plaintiff on October 14, 2025 and October 22, 2025 requesting the status of the discovery responses, and plaintiff did not respond. (*Id.*, ¶ 6.) On October 24, 2025, Patel filed a Motion to Deem the RFAs Admitted. Plaintiff did not oppose the Motion and did not appear at the hearing on the Motion. (*Id.*, ¶ 9.) On February 18, 2026, the court granted the Motion and deemed the RFAs admitted against plaintiff. (*Ibid.*)

On April 2, 2026, plaintiff filed this Motion seeking relief from having the RFAs deemed admitted against him. Plaintiff seeks relief under Code of Civil Procedure, sections 473, subdivision (b) and 2033.300.

Under section 473, subdivision (b), "[t]he court may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect." (Code Civ. Proc., § 473, subd. (b).) Under section 2033.300, "[t]he court may permit withdrawal or amendment of an admission only if it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (*Id.*, § 2033.300, subd. (b).) The relief allowed under section 2033.300(b) applies to admissions that were deemed admitted against a party. (See *Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979-982 [finding relief under former section 2033, subdivision (m), now section 2033.300, also applied to admissions that were deemed admitted against a party].) The burden rests on the nonresponding party to establish mistake, inadvertence or excusable neglect and no substantial prejudice to the propounding party. (*Id.*, at p. 982.)

The difference between section 2033.300, subdivision (b) and section 473, subdivision (b) is that section 2033.300, subdivision (b) requires not only a showing of "mistake, inadvertence, or excusable neglect," but also a showing that "the party who obtained the admission will not be substantially prejudiced in maintaining that party's action or defense on the merits." (*New*